

CONCLUSION

The petition to compel arbitration is GRANTED. This action is STAYED in its entirety pending the outcome of arbitration.

The court will prepare the order.

Calendar Line 8

Case Name: *Zarghami v. Falaha*

Case No.: 25CV474036

According to the allegations of the first amended complaint (“FAC”), plaintiff Mohamad H. Zarghami (“Plaintiff”) and defendant Sara Falaha (“Defendant”) were married and share a minor child, and are parties in the Family Law matter *Falaha v. Zarghami* (Super. Ct. County of Santa Clara, 2024, No. 24FL002138). (See FAC, ¶ 6.) Between May 2025 and the March 5, 2026 filing of the FAC, Defendant recorded no less than twelve confidential communications between them using an electronic amplifying or recording device without Plaintiff’s consent, in violation of Penal Code section 632(a). (See FAC, ¶¶ 7-18.) Further, Defendant hired a private investigator to follow Plaintiff and monitor who entered and exited his home, and arranged for surveillance of Plaintiff’s home without Plaintiff’s consent, even when Plaintiff did not have custody of his daughter. (See FAC, ¶ 19.) Defendant obtained intimate photographs of Plaintiff with a woman in the bedroom of his home and also had Plaintiff followed and videotaped without his consent. (See FAC, ¶ 20.) Defendant also monitored Plaintiff’s location through a GPS tracker, and through his laptop, documenting where he went and where he stayed overnight, without his consent and when Plaintiff was not with his daughter pursuant to their custody agreement. (See FAC, ¶ 21.) Defendant has threatened to release Plaintiff’s private information and photographs and videos of Plaintiff to their community for the purpose of shaming him.